

**Court No. - 37**

**Case :-** WRIT - C No. - 45177 of 2017

**Petitioner :-** Mohd. Naeem

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Krishna Dutt Tiwari

**Counsel for Respondent :-** C.S.C.,Pranjal Mehrotra

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Rajiv Lochan Mehrotra,J.**

After the matter was heard, learned counsel for the petitioners submits that he may be permitted to withdraw the writ petition and file a better writ petition with regard to assessment. Before filing the writ petition, the petitioner is directed to obtain necessary documents in this regard from the office of the Executive Engineer concerned and in the event, he feels aggrieved then only he may file the writ petitioner can avail of the remedy available under the U.P. Electricity Act 2003 and the U.P. Electricity Supply Code 2005 framed thereunder.

The writ petition is dismissed as withdrawn with the said liberty.

**Order Date :-** 21.9.2017

M. ARIF